



PHASE I ENVIRONMENTAL SITE ASSESSMENT REPORT

*603 Queensbury Ave
Queensbury, NY 12804*

November 20, 2024

Prepared for:

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TABLE OF CONTENTS

EXECUTIVE SUMMARY	1
1.0 INTRODUCTION.....	3
1.1 Purpose.....	3
1.2 Special Terms and Conditions	3
1.3 Site Specific Methodologies and Limiting Conditions	3
2.0 SUBJECT PROPERTY DESCRIPTION.....	4
2.1 Location and Description.....	4
2.2 Subject Property Vicinity and Characteristics.....	5
2.3 Description of Structures, Road, and Improvements	5
2.4 Current Uses of the Property	6
2.5 Past Uses of the Property.....	6
2.6 Current and Past Uses of Surrounding Properties	6
3.0 INFORMATION REPORTED BY THE USER REGARDING ENVIRONMENTAL LIENS OR SPECIALIZED KNOWLEDGE OF ENVIRONMENTAL ISSUES	7
3.1 User Provided Information	7
3.2 Known Environmental Liens	7
3.3 Activity and Land Use Limitations.....	7
3.4 Specialized Knowledge of Environmental Issues	7
3.5 Relationship of Purchase Price to the Fair Market Value	7
3.6 Commonly Known or Reasonably Ascertainable Information	8
3.7 Obvious Indicators of Contamination.....	8
3.8 Other User Provided Information	8
4.0 ENVIRONMENTAL RECORDS REVIEW.....	8
4.1 DATABASE Radius Map	8
4.2 Additional Environmental Records Reviewed	11
5.0 INTERVIEWS.....	11
5.1 Interviews with Present and Past Owners and Occupants.....	11
5.2 Interviews with State and Local Government Officials.....	11
6.0 PHYSICAL SETTING	11

6.1 Topography.....	11
6.2 Surface Water.....	12
6.3 Soils and Geology	12
6.4 Hydrogeology.....	12
6.5 Floodplains.....	12
6.6 Wetlands.....	12
7.0 HISTORICAL USE INFORMATION AND OTHER RECORDS.....	12
7.1 Historical Aerial Photographs.....	12
7.2 Historical Topographic Maps	13
7.3 Certified Sanborn Maps	13
7.4 City Directories.....	13
8.0 INFORMATION FROM SITE RECONNAISSANCE.....	14
8.1 Interior and Exterior Observations.....	14
8.2 Non-Scope Considerations.....	15
9.0 SUMMARY OF FINDINGS AND OPINIONS.....	16
9.1 Recognized Environmental Conditions (RECs)	16
9.2 Historic Recognized Environmental Conditions (HRECs)	16
9.3 Controlled Recognized Environmental Conditions (CRECs).....	16
9.4 Business Environmental Risks (BERs).....	16
9.5 De Minimis Conditions	16
9.6 Other Findings.....	16
9.7 Opinion.....	16
10.0 CONCLUSIONS	16
11.0 QUALIFICATIONS OF ENVIRONMENTAL PROFESSIONAL	17
12.0 REFERENCES.....	18

APPENDICES

Appendix A: ASTM Standard Practice E1527-21 Definitions

Appendix B: Terms and Conditions, Limitations

Appendix C: Subject Property Maps

Appendix D: Photographic Log

Appendix E: User Provided Information

Appendix F: EnviroSite Database Reports

EXECUTIVE SUMMARY

James Environmental Management (JEM) prepared this report to summarize the findings of a Phase I Environmental Site Assessment (ESA) for One Remington, LLC, the Client, conducted on the subject property located at 603 Queensbury Ave, Queensbury, NY 12804 (the “Subject Property”). This Phase I ESA was performed in conformance with the scope and limitations of the ASTM Standard Practice E1527-21 for Environmental Site Assessments: Phase I Environmental Site Assessment Process (the ‘Standard’) and the U.S. Environmental Protection Agency’s (USEPA) ‘All Appropriate Inquiry’ Final Rule, 40 C.F.R. Part 312 (AAI). This Phase I ESA was performed in an effort to identify recognized environmental conditions (RECs), controlled recognized environmental conditions (CRECs), historical recognized environmental conditions (HRECs), business environmental risks (BERs), and de minimis conditions. The terms RECs, CRECs, HRECs, BERs, de minimis conditions and significant data gap are defined in Appendix A. The findings of this Phase I ESA are presented in subsequent sections of this report. Support documents are provided as appendices, as appropriate.

This Phase I ESA consists of the components required by the Standard, including a visual inspection of the subject property; review of pertinent background and historical information; evaluation of physical setting sources; interviews with persons knowledgeable of the property (as available); review of environmental records; photographic documentation; and report preparation.

The Subject Property consists of a 16.65-acre property located less than one mile north of The Floyd Bennet Memorial Airport, as depicted on Figure 1. Onsite features include one approximately 135,200-square-foot structure, concrete sidewalks and associated asphalt paved parking areas and roadways, as depicted on Figure 2. The onsite structure is made up of five connected buildings. The remainder of the Subject Property consists of lawn space along with some wooded areas along the border portions of the Subject Property. Access to the Subject Property is via an asphalt paved driveway that enters the northwest portion of the Subject Property off Hicks Road on the southeast portion of the Subject Property off Queensbury Avenue.

At the time of the site visit, the Subject Property was being used as a medical equipment manufacturing facility by Angio Dynamics, Inc. Prior to commercial development at the Subject Property in the 1980s, the property was used for agricultural/residential purposes. City Directories list Comstock Foods, Inc. at the Subject Property from 1968 until 1983, but further information regarding the use is not available. Caton Mark and AK C Auto occupied the property in 1988. Fairport Fitness Ctr occupied the property from approximately 1998 until 2015.

The Subject Property is located in Queensbury, surrounded by commercial/light industrial properties. Hicks Road is present north of the Subject Property, commercial/light industrial properties are present south of the Subject Property. The Floyd Bennett Memorial Airport is located southwest of the Subject Property. Queensbury Ave is present east of the Subject Property, followed by commercial and light industrial businesses. The Subject Property is bordered to the west by grassland and a road to the airport.

Recognized Environmental Conditions

The Phase I ESA did not reveal evidence of RECs in connection with the Subject Property.

Controlled Recognized Environmental Conditions (CRECs)

The Phase I ESA did not reveal evidence of CRECs in connection with the Subject Property.

Historic Recognized Environmental Conditions (HRECs)

The Phase I ESA did not reveal evidence of HRECs in connection with the Subject Property.

Business Environmental Risks (BERs)

The Phase I ESA did not reveal evidence of BERs in connection with the Subject Property.

De Minimis Conditions

The Phase I ESA did not reveal evidence of de minimis conditions in connection with the Subject Property.

Significant Data Gaps

No significant data gaps, data failures or other limiting conditions were encountered during this Phase I ESA.

Non-Scope Considerations are *environmental issues or conditions at a Property that parties may wish to assess in connection with commercial real estate that are outside the scope of the Standard.*

Based on the Scope of Work for this Phase I ESA, the Client/User did not elect to pursue any of these Non-Scope Considerations or other items outside the scope of the Standard.

Opinion

Based on the observations and findings of this Phase I ESA, it is JEM's opinion that further investigation is not warranted at this time. Additionally, based on the observations and findings of this Phase I ESA, vapor migration/intrusion does not appear to be of concern at the Subject Property.

1.0 INTRODUCTION

James Environmental Management (JEM) prepared this report to summarize the findings of a Phase I Environmental Site Assessment (ESA) for One Remington, LLC, the Client, conducted on the subject property located at 603 Queensbury Ave, Queensbury, NY 12804 (the “Subject Property”). This Phase I ESA was performed in conformance with the scope and limitations of the ASTM Standard Practice E1527-21 for Environmental Site Assessments: Phase I Environmental Site Assessment Process (the ‘Standard’) and the U.S. Environmental Protection Agency’s (USEPA) ‘All Appropriate Inquiry’ Final Rule, 40 C.F.R. Part 312 (AAI). This Phase I ESA was performed in an effort to identify recognized environmental conditions (RECs), controlled recognized environmental conditions (CRECs), historical recognized environmental conditions (HRECs), business environmental risks (BERs), and de minimis conditions. The terms RECs, CRECs, HRECs, BERs, de minimis conditions and significant data gap are defined in Appendix A. The findings of this Phase I ESA are presented in subsequent sections of this report. Support documents are provided as appendices, as appropriate.

1.1 Purpose

This Phase I ESA was performed in support of a potential property transaction. The purpose of the Phase I ESA was as follows:

1. To observe the subject property for any areas of potential environmental concerns (i.e., RECs, HRECs, CRECs, BERs or de minimis conditions, as defined in the Standard) that may be present;
2. To evaluate the extent to which the above-described areas may affect the subject property; and
3. To present a written report of findings, which will assist the Client in evaluating the need for further investigations to more accurately define the nature and extent of any potential environmental concerns.

1.2 Special Terms and Conditions

The Phase I ESA was conducted in conformance with the scope and limitations of the Standard. Any exceptions or deletions from this practice are described in Section 1.3 of this report. This project is subject to certain terms and conditions and limitations, as presented in Appendix B and discussed in this report.

1.3 Site Specific Methodologies and Limiting Conditions

The Phase I ESA and other associated tasks, as well as the preparation of the report, were performed by JEM. This Phase I ESA consists of the components required by the Standard including a visual inspection of the subject property; review of pertinent background and

historical information; evaluation of physical setting sources; interviews with persons knowledgeable of the property (as available); review of environmental records; photographic documentation; and report preparation. The results of this Phase I ESA are presented in Sections 2.0 through 8.0 with a summary of findings presented in Section 9.0. An evaluation with recommendations for any further action is presented in Section 10.0, the credentials for personnel involved in the completion of this Phase I ESA presented in Section 11.0, and references are provided in Section 12.0. Maps depicting the Subject Property location, adjacent properties and pertinent onsite features as well as selected photo-documentation are presented in Appendices C and D, respectively, and are referenced throughout this document. Support documentation including user-provided information, the environmental database search reports, and historical resources relied upon in the preparation of this Phase I ESA are presented in Appendices E through F, as appropriate.

Site Reconnaissance Details	
Field Personnel:	Jacob Guy, JEM
Subject Property Visit Date:	October 24, 2024
Weather:	Cloudy/rainy with 54°F temperature
Escort(s):	Joe Holcomb, Facilities and Maintenance Manager for Angio Dynamics, Inc.
Methodology:	The site visit consisted of walking around the perimeter of the Subject Property, accessing all ground-level rooms, second floor rooms, and walking through representative office spaces and all custodial closets/utility rooms.
Limiting Conditions:	Portions of the facility include sterile or “clean” laboratories. These rooms were inaccessible as they required specialized Personal Protective Equipment and procedures as part of the manufacturing facilities requirements. Access to these areas is considered a limiting condition but is not considered significant and does not affect the overall findings of the Phase I ESA.

No significant data gaps, data failures or limiting conditions were encountered during this Phase I ESA.

2.0 SUBJECT PROPERTY DESCRIPTION

2.1 Location and Description

Site Location/Description	
Subject Property/Facility Name:	603 Queensbury Ave, Queensbury, NY 12804
Geographic Location:	The latitude and longitude coordinates for the approximate center of the Subject Property are 43° 21' 8.13" North and 73° 36' 18.51" West
Subject Property Address(es):	603 Queensbury Ave, Queensbury, NY 12084
Parcel ID(s) and Area:	Tax Parcel: #297.8-1-10 (16.65 acres)

Site Location/Description	
	#297.8-1-14.1 (.97 acres) #297.8-1-14.2 (.7 acres) #297.8-1-15 (1.17 acres) #297.8-1-27.2 (.84 acres)
Zoning:	Light industrial
Subject Property Owner:	Angio Dynamics, Inc.
Occupant(s):	Angio Dynamics, Inc.
Subject Property Description:	The Subject Property consists of a 16.65-acre property located less than one mile north of The Floyd Bennet Memorial Airport, as depicted on Figure 1. Onsite features include one approximately 135,200-square-foot structure, concrete sidewalks and associated asphalt paved parking areas and roadways, as depicted on Figure 2. The onsite structure is made up of five connected buildings. The remainder of the Subject Property consists of lawn space along with some wooded areas along the border portions of the Subject Property. Access to the Subject Property is via an asphalt paved driveway that enters the northwest portion of the Subject Property off Hicks Road on the southeast portion of the Subject Property off Queensbury Avenue.
Source(s) of Potable Water:	The facility is supplied potable water by the Queensbury Consolidated Water District.
Sewage Disposal System(s):	The facility is connected to the Warren County Industrial Park Sewer District 1.
Heating/Cooling System(s):	Multiple natural gas supplied furnaces provide heating for the various structures on site. The structures are also climate controlled with cooling and air filtration through forced air conditioners and continuous air compressors specifically used for positive air pressure in the “clean” laboratories.
Notable Other Utilities:	NYSEG provides electricity to the Subject Property. Two pump stations were identified on the east exterior and southwest exterior. Multiple storm drains are located around the asphalt parking areas of the Subject Property.

2.2 Subject Property Vicinity and Characteristics

The Subject Property is located in Queensbury, surrounded by commercial/light industrial properties. The Floyd Bennett Memorial Airport is located south of the Subject Property. The surrounding properties are further described in Section 2.6.

The general topographic gradient in the area is flat to gently sloping to the west. Physical setting information is further discussed in Section 6.0.

2.3 Description of Structures, Road, and Improvements

Onsite features include 135,200 square feet of building space, broken up in five buildings. A large parking lot surrounds the building.

Building	Approx. Area (Sq. Ft.)	General Construction	Use
Building 1	7,000-square-foot	New roof in 2012, completely remodeled inside and out in 2020 including new siding and windows	Common area, meeting rooms and offices
Building 2	12,600-square-foot	New roof in 2012, completely remodeled inside and out in 2020 including new siding and windows	Common area, cafeteria, meeting rooms, offices
Building 3	57,900-square-foot	Two floors with three loading docks	Clean rooms and transition rooms
Building 4	11,000-square-foot	Completely remodeled in 2018 including HVAC, new siding, roof and windows	Clean room with transitions room
Building 5	46,700-square foot	Two floors with five loading docks and an elevator	Warehouse and offices

2.4 Current Uses of the Property

At the time of the site visit, the Subject Property was being used as a medical equipment manufacturing facility by Angio Dynamics, Inc.

2.5 Past Uses of the Property

Prior to commercial development at the Subject Property in the 1980s, the property was used for agricultural/residential purposes. City Directories list Comstock Foods, Inc. at the Subject Property from 1968 until 1983, but further information regarding the use is not available. Caton Mark and AK C Auto occupied the property in 1988. Fairport Fitness Ctr occupied the property from approximately 1998 until 2015.

2.6 Current and Past Uses of Surrounding Properties

Current uses of adjoining properties and other surrounding properties are summarized below.

North: The Subject Property is bordered to the north by Hicks Road, followed by vacant forested land.

South: Immediately south of the Subject Property are commercial and industrial properties, including BMI Supply, J.E. Monahan Metals, Inc., StoredTech and others. The Floyd Bennett Memorial Airport is located southwest of the Subject Property.

East: The Subject Property is bordered to the east by Queensbury Ave, followed by commercial and industrial businesses including Paxi Technology and Melviena Can.

West: The Subject Property is bordered to the west by grassland and a road to the airport, followed by undeveloped land.

Historically, the surrounding area was used for residential and agricultural purposes until approximately 1986 when commercial development began. The airport was historically present south of the Subject Property. Previous use of properties to the south also appear to have been as mines.

Based on available information, the current and/or historic use of adjoining/adjacent properties do not appear to represent a REC with respect to the Site.

3.0 INFORMATION REPORTED BY THE USER REGARDING ENVIRONMENTAL LIENS OR SPECIALIZED KNOWLEDGE OF ENVIRONMENTAL ISSUES

3.1 User Provided Information

For this Phase I ESA to fully constitute an AAI assessment (per 40 CFR §312) and should the User of the Phase I ESA seek innocent landowner, contiguous property owner, or bona fide prospective purchaser limitations on CERCLA liability (i.e., the *landowner liability protections*, or LLPs), JEM requested completion of a User Questionnaire (*Appendix X3* of the Standard).

The Use Questionnaire was completed by Josh Williams. The completed questionnaire and any records provided by the User are included in Appendix E. Pertinent User-provided information is summarized in this section and presented throughout this report, as appropriate.

3.2 Known Environmental Liens

The User reported that a search of land title records (or judicial records, where appropriate) did not identify any environmental liens filed or recorded against the Subject Property.

3.3 Activity and Land Use Limitations

The User reported that a search of land title records (or judicial records, where appropriate) did not identify any AULs, such as engineering controls, land use restrictions, or institutional controls that are in place at and/or have been filed or recorded against the Subject Property.

3.4 Specialized Knowledge of Environmental Issues

The User did not report having specialized knowledge or experience related to the Subject Property or nearby properties.

3.5 Relationship of Purchase Price to the Fair Market Value

The User reported that this Phase I ESA was part of a refinance transaction and did not report any valuation reductions due to contamination known or believed to be present on the Subject Property.

3.6 Commonly Known or Reasonably Ascertainable Information

The User was not aware of any specific chemicals present or once present on the Subject Property, or of any chemical releases/spills or environmental cleanups having taken place on the Subject Property.

3.7 Obvious Indicators of Contamination

The User did not report having any knowledge of any obvious indicators that might point to the presence or likely presence of environmental contamination on the Property.

3.8 Other User Provided Information

The User did not provide any additional information for this Phase I ESA.

4.0 ENVIRONMENTAL RECORDS REVIEW

4.1 DATABASE Radius Map

A search of the standard environmental record sources was conducted at or exceeding the radii established by the Standard. A summary of the findings in the database search is presented in the paragraphs below and the database report is provided in Appendix F. A summary of the findings from the database search is present in the table below.

Standard Environmental Records Database Report Summary Table				
Database	Search Radius (miles)	Is the Subject Property listed?	Is one or more adjoining properties listed?	Total number of sites listed
Federal Environmental Records:				
RCRA TSD Facilities	0.50	No	No	0
CERCLA with NFRAP	0.50	No	No	0
CERCLA Removals and Orders	0.50	No	No	0
RCRA Corrective Action Sites	1.00	No	No	0
Delisted NPL Sites	1.00	No	No	0
RCRA Generators of Hazardous Waste	Subject Property and Adjoining Properties	Yes	Yes	3
Federal ERNS	Property Only	No	No	0
Fed. Institutional/Engineering Controls	Property Only	No	No	0
NPL (Superfund) Sites	1.00	No	No	0
State Environmental Records:				
State/Tribal Registered Storage Tanks	Subject	No	Yes	2

Standard Environmental Records Database Report Summary Table				
Database	Search Radius (miles)	Is the Subject Property listed?	Is one or more adjoining properties listed?	Total number of sites listed
	Property and Adjoining Properties			
State/Tribal Leaking Storage Tanks	0.50	No	Yes	2
State/Tribal Brownfields Sites	0.50	No	No	0
State/Tribal “Superfund Equivalent Sites	1.00	No	No	2
State/Tribal Hazardous Waste Facilities	0.50	No	No	0
State/Tribal Institutional/Engineering Control Registries	Property Only	No	No	0
State/Tribal Solid Waste Disposal and Landfills	0.50	No	No	0
State/Tribal Voluntary Cleanup Sites	0.50	No	No	0
Spills/Emergency Releases		No	No	3
Additional, Non-Standard Environmental Records:				
Other Environmental or Compliance Listings	Varies by database	No	No	0

Summary of findings (Target Property): The database search report identified several listings associated with the target property. Based on the available information, these listings do not represent a REC with respect to the Subject Property.

Standard Environmental Records Findings – Subject Property	
Subject Property Name(s):	ANGIODYNAMICS
Address(es):	603 QUEENSBURY AVE, QUEENSBURY, NY
Database Listing(s):	PFAS INDUSTRY, ECHO, FRS, ICIS, INACTIVE PCS, MANIFEST – NY, MANIFEST EPA, PCS FACILITY, PFAS INDUSTRY, RCRA_NONGEN, RCRA_SQG, SPDES – NY, STORMWATER
Database Summary:	The facility has an active General SPDES permit and a history as a RCRA generator. Further information for the PFAS industry listing is not provided.
File Review or Findings Summary:	Based on the available information, further file review was deemed unwarranted and was not conducted.

Summary of findings (orphan sites): The database search report typically provides a list of “orphan” sites that cannot be accurately located due to incomplete addresses and/or other location information. The report did not identify any orphan sites.

Tribal Databases: In addition to the federal and state databases, the Standard also requires a search of tribal databases for hazardous waste sites, landfills, institutional/ engineering control sites, voluntary cleanup sites and Brownfields sites on Native American/tribal lands. There were no tribal land sites within the specified search radii, as such no tribal hazardous waste sites,

landfills, institutional/engineering sites or other potentially listed sites on tribal lands were expected to be located in the vicinity of the Subject Property.

Summary of findings (Plottable Adjoining Sites): The database search report identified four listings associated with adjoining properties.

Standard Environmental Records Findings – Adjoining Site #1	
Site Name(s):	WARREN COUNTY AIRPORT / FLOYD BENNETT MEMORIAL AIRPORT
Address(es):	QUEENSBURY AVENUE, QUEENSBURY, NY / 443 QUEENSBURY AVE, QUEENSBURY, NY
Proximity to the Subject Property:	271 FEET SOUTHWEST
Groundwater flow with respect to the Subject Property:	Downgradient
Database Listing(s):	EPA LUST, SPILLS – NY, AOC – NY, AST PBS – NY, ECHO, EPA LUST, FRS, HIST PCS ENF, HSWDS – NY, ICIS, INACTIVE PCS, LTANKS 2 – NY, PCS ENF, PCS FACILITY, PFAS AFFF – NY, SHWS – NY, SPDES – NY, STORMWATER
Database Summary:	The site is in the State Superfund Program under code 557024. The site is classified with “P”, a designation used for potential Registry sites. The site has an active PBS registration (5-230227) for classified tank information. The site uses firefighting foam with PFAS. Spill no. 9306710 occurred in 1993 when contaminated soil was encountered during the removal of an UST with a hole in it. The spill is closed as meeting cleanup standards. Spill no. 1704556 occurred in 2017 when DEC created the spill file in order to track investigative efforts related to PFAS at the facility. The notes say ‘sampling complete, no further action required at this time’. Spill no. 1203703 occurred in 2012 off the runway; however, spill notes indicate that no spill occurred and no action was required. The spill is closed as meeting cleanup standards. Spill no. 1410242 occurred in 2015 when excavating but the spill was subsequently closed as meeting cleanup standards for the limited area addressed. Spill notes indicate that ‘if future site work is undertaken south of the building, any impacted soil encountered should be further assessed before making a re-use or disposal determination’. Spill no. 1908991 occurred in 2019 when a spill was observed during a PBS inspection and then subsequently addressed. Spill no. 98114746 occurred in 1999 when a 10,000-gallon diesel tank failed a tightness test. The spill was handled under spill no. 9902681. Spill no. 9902681 occurred in 1999 when a tank pull found contaminated soils, presumably from years of overfilling. The contamination was removed and the DEC annotated ‘no further action required’ and the spill was closed as meeting cleanup standards. Spill no. 9909195 occurred in 1999 but was addressed under spill no. 9902681. Spill no. 2107697 occurred in 2021. Notes indicate ‘large amount of fuel – on the ground – RESPONSE REQUESTED’; however, notes also indicate that this is a duplicate spill and to refer to spill no. 2107701.
File Review or Findings Summary:	A FOIL request was submitted for the spills at the site to ensure that a threat to the Subject Property does not exist. Further information is provided below in Section 4.2.

Summary of findings (Plottable Adjacent/Surrounding Sites): The database search report identified 11 listings associated with adjacent/surrounding properties. Based on the available information, these listings do not represent a REC with respect to the Subject Property.

4.2 Additional Environmental Records Reviewed

JEM also reviewed the NYS PBS, NY Spill, DECinfo Locator, ECHO and NY hazardous waste site databases. Information obtained from the databases matched that from the EnviroSite report.

A FOIL request was submitted for the spills at the Floyd Bennett Memorial Airport site. In addition to the spills identified by the EnviroSite report, spill no. 2107701 and spill no. 9310964 were identified by the FOIL request. Both of those ‘additional’ spills are closed. Based on the information provided and the location of the site being downgradient from the Subject Property, this site does not appear to represent a REC to the Subject Property.

5.0 INTERVIEWS

5.1 Interviews with Present and Past Owners and Occupants

Joeseeph Holcomb, Facilities and Maintenance Manager of the Subject Property under ownership of Anglo Dynamics, Inc., was interviewed at the time of the site visit.

5.2 Interviews with State and Local Government Officials

In recognition of the due diligence component of this evaluation, JEM attempted to contact State and/or local regulatory agencies in an effort to obtain further information regarding environmental conditions at the Subject Property and surrounding properties. Individuals contacted and information provided by local officials has been summarized below.

Warren County Online Tax Records: The Warren County online tax records were accessed to confirm parcel number, acreage and current ownership.

Queensbury Code Enforcement Office – FOIL Request: A FOIL Request was submitted to the Queensbury Code Enforcement Office for information pertaining to environmental concerns at the Subject Property. A response has not been received by the date of this report.

6.0 PHYSICAL SETTING

6.1 Topography

The Subject Property is approximately 340 feet above mean sea level (AMSL). The general topographic gradient in the area is to the west. Elevations within a one-mile radius of the Subject Property range from a low of approximately 320 feet AMSL to the east and south to a high of over 380 feet AMSL to the west.

6.2 Surface Water

Major surface water bodies were not located on or immediately adjacent to the Subject Property. Minor Tributaries to the Upper Hudson River are present both to the east and west of the Subject Property.

Surface water from the Subject Property is expected to infiltrate or is directed toward the onsite stormwater retention pond.

6.3 Soils and Geology

According to the Soil Survey for Warren County, the dominant soil types at the Subject Property consist of Charlton fine sandy loam, Madalin silt loam and Rhinebeck silt loam. These soil types are present on low slopes and are typically poor to well drained with moderately low to high permeability rates. Depth to bedrock is unknown.

6.4 Hydrogeology

Based on the interpretation of topography and proximity to surface water features, groundwater flow is estimated to be southwest.

6.5 Floodplains

According to the Federal Emergency Management Agency (FEMA), the Subject Property is not located within a flood zone.

6.6 Wetlands

According to the database search report, state or federal wetlands were not mapped on the Subject Property.

7.0 HISTORICAL USE INFORMATION AND OTHER RECORDS

7.1 Historical Aerial Photographs

Historical aerial photographs were reviewed for the years 1942, 1947, 1960, 1964, 1965, 1979, 1986, 1995, 2001, 2004, 2006, 2008, 2009, 2011, 2013, 2015, 2017, 2019, 2021 and 2022 as part of this Phase I ESA (Appendix F). The following is a brief summary of significant observations noted in the photographs.

- 1942-1979: A farm/residential building is located on the northern portion of the Subject Property. The remainder of the site consists of agricultural fields and vacant land. The

surrounding properties are of a similar nature, with an airport landing strip partially visible southwest of the Subject Property.

- 1986: Several commercial buildings are present on the Subject Property with trucks and trailers parked in the parking area that surrounds the buildings and takes up the majority of the northeastern portion of the property. The remaining portions of the property consist of overgrown vegetation and forests. A pond is present on the northern boundary of the Subject Property. Other commercial buildings have been constructed in the surrounding area.
- 1995: One long building is no longer present at the Subject Property. Commercial development in the surrounding area has expanded.
- 2001: No significant changes to the Subject Property or surrounding area were observed.
- 2004: Smaller building at the Subject Property have been replaced with large addition on the main building. Commercial development in the area has continued.
- 2006: No significant changes to the Subject Property or surrounding area were observed.
- 2008: Another large addition to the main building has been constructed on the Subject Property. Two retention ponds appear to be present west and southwest of the buildings.
- 2009-2022: No significant changes to the Subject Property or surrounding area were observed.

7.2 Historical Topographic Maps

Historical topographic maps were reviewed for the years 1895, 1897, 1938, 1947, 1955, 1966, 2010, 2013, 2016, 2019 and 2023 as part of this Phase I ESA (Appendix F). The following is a brief summary of significant observations noted in the maps.

- 1895-1947: The Subject Property is relatively flat and located in Warren County, immediately west of the County line between Warren County and Washington County.
- 1955: The County Airport is annotated southwest of the Subject Property. A gravel pit is located south of the Subject Property.
- 1966: Additional gravel pits are located south and southwest of the Subject Property.
- 2010-2023: No significant changes to the Subject Property or surrounding area were observed.

7.3 Certified Sanborn Maps

Certified Sanborn Maps were not available for the Subject Property (Appendix F).

7.4 City Directories

City Directories were reviewed for the years 1939, 1950, 1955, 1964, 1967, 1993, 1998, 2001, 2006, 2011, 2015 and 2020 for the target street as part of this Phase I ESA (Appendix F). The following is a brief summary of significant observations noted.

- 1968-1983: Comstock Foods Inc. is located at the Subject Property.
- 1988: Caton Mark and AK C Auto are located at the Subject Property.
- 1993: The Subject Property is not listed.
- 1998: Fairport Fitness Ctr, Trail Transportation Corp and Watermark Foods are located at the Subject Property.
- 2001: Fairport Fitness Ctr and Watermark Foods are located at the Subject Property.
- 2006-2010: The Subject Property is not listed.
- 2015: Fairport Fitness Ctr is located at the Subject Property.
- 2020: The Subject Property is not listed.

8.0 INFORMATION FROM SITE RECONNAISSANCE

8.1 Interior and Exterior Observations

Interior and exterior observations made during the site reconnaissance visit are summarized in the table below.

Interior & Exterior Observations Summary		
Feature or Condition (summary of observation or environmental finding follows)	Identified?	
	Yes	No
<i>Hazardous Substances & Petroleum Products (for use in Property operations):</i>	X	
Numerous small volume containers (i.e., five gallons or less) of various liquids including household cleaning products, oils/lubricants, paints/coatings, two-part epoxies, antifreeze, oxidizers, water treatment chemicals and other materials were observed onsite. In general, these materials were stored on concrete floors, shelves or in cabinets in various areas of the buildings including custodial closets, electric/utility rooms, elevator rooms and the workshop. In addition, multiple containers of propylene glycol were observed in multiple utility rooms as well as 55-gallon steel drums containing used and unused lubricating oils used for metal machining. Overall, the containers were in good condition, and evidence of spillage or floor staining was not observed where the containers were stored.		
<i>Aboveground Storage Tanks (ASTs):</i>	X	
A single diesel fuel tank with secondary containment was observed in a utility and storage room in between Building 3 and Building 5. The onsite contact indicated that this tank supplies the onsite generator.		
<i>Underground Storage Tanks (USTs) or indicators of past or present USTs:</i>		X
<i>Strong, Pungent, or Noxious Odors and Their Sources:</i>		X
<i>Standing Surface Water and Pools or Sumps Containing Liquids Likely to be Hazardous Substances or Petroleum Products:</i>		X
<i>Drums, Totes, and Intermediate Bulk Containers, 55-gallons or larger:</i>	X	
Multiple 55-gallon drums containing oil for metal machining both used and unused were observed in Buildings, 3, 4, and 5. Most of the 55-gallon drums containing lubricating oils were stored over secondary containment.		
<i>Hazardous Substance and Petroleum Product Containers Not in Connection with Identified Uses:</i>		X
<i>Unidentified Substance Containers:</i>		X
<i>Items Containing or Likely Containing Polychlorinated Biphenyls (PCBs):</i>		X
<i>Stains or Corrosion on Floors, Walls, or Ceilings:</i>	X	

Interior & Exterior Observations Summary		
Feature or Condition (summary of observation or environmental finding follows)	Identified?	
	Yes	No
Two air compressors associated with the climate control system in Building 3 were observed with staining and absorbent fabric. In each case the staining and absorbent fabric was confined to the floor in the immediate vicinity of each compressor tank and, as such, these stained areas are considered de minimis.		
<i>Floor Trenches/Drains and Sumps:</i>	X	
Floor drains were observed in the restrooms and utility rooms located in the various buildings. These floor drains reportedly discharged to the municipal sanitary sewer system. Odors, staining or other evidence of a release to any of these floor drains was not observed. In addition, one or more sumps were observed on the exterior of each of Buildings 3 and 5. These sumps included injectors that reportedly discharged to the municipal sanitary sewer system as well and sumps to control high groundwater beneath the buildings that discharge to the municipal stormwater collection system or onsite retention pond. Odors, staining or other evidence of a release to any of these sumps was not observed and no problems were reported.		
<i>Pits, Ponds, or Lagoons:</i>	X	
A stormwater retention pond is present along the west portion of the Property. This pond receives stormwater from the Subject Property where the water is allowed to infiltrate.		
<i>Stained Soil or Pavement (Exterior Surfaces):</i>		X
<i>Stressed Vegetation (from something other than insufficient water):</i>		X
<i>Evidence of Solid Waste Disposal (trash, construction debris, landfilling):</i>	X	
Solid waste generated onsite consists of typical office and domestic waste and packaging materials. These materials are staged for disposal or recycling in solid waste dumpsters located north of Building 5. Evidence of onsite disposal of construction debris or any other waste materials was not observed or reported.		
<i>Industrial Water or Wastewater Discharge from the Property (including Stormwater):</i>	X	
Aside from sanitary wastewater, no industrial or other wastewater was generated onsite. Stormwater is controlled through a series of onsite catch basins throughout the Property that direct flow to either the municipal stormwater collection system or to the onsite stormwater retention pond.		
<i>Wells:</i>		X
<i>Septic Systems or Cesspools:</i>		X
<i>Other Notable Observations:</i>	X	
Two hydraulic systems for elevators in Building 3 and Building 5 are located between the two buildings. Each system has an aboveground holding cell for hydraulic fluid associated with each elevator. A large cell containing carbon dioxide used for metal machining lubrication was observed on the exterior of Building 4. Additionally, a diesel generator was observed between Building 5 and Building 2. The site contact indicated that the onsite diesel fuel tank supplied the generator.		

8.2 Non-Scope Considerations

Non-Scope Considerations are “*environmental issues or conditions at a Property that parties may wish to assess in connection with commercial real estate that are outside the scope of the ASTM E1527-21 Standard Practice.*”

Based on the Scope of Work for this Phase I ESA, the Client/User did not elect to pursue any of these Non-Scope Considerations or other items outside the scope of the Standard.

9.0 SUMMARY OF FINDINGS AND OPINIONS

JEM has performed a Phase I ESA of the Subject Property in conformance with the scope and limitations of ASTM E1527-21 Standard Practice for *Environmental Site Assessments: Phase I Environmental Site Assessment Process*. Any exceptions or deletions from this practice are described in this report. Findings and opinions are summarized below.

9.1 Recognized Environmental Conditions (RECs)

The Phase I ESA did not reveal evidence of RECs in connection with the Subject Property.

9.2 Historic Recognized Environmental Conditions (HRECs)

The Phase I ESA did not reveal evidence of HRECs in connection with the Subject Property.

9.3 Controlled Recognized Environmental Conditions (CRECs)

The Phase I ESA did not reveal evidence of CRECs in connection with the Subject Property.

9.4 Business Environmental Risks (BERs)

The Phase I ESA did not reveal evidence of BERs in connection with the Subject Property.

9.5 De Minimis Conditions

The Phase I ESA did not reveal evidence of de minimis conditions in connection with the Subject Property.

9.6 Other Findings

JEM did not encounter any other notable findings in addition to those presented above.

9.7 Opinion

It is JEM's opinion that further investigation is not warranted at this time. Additionally, based on the observations and findings of this Phase I ESA, it is unlikely that vapor migration/intrusion could be a concern at the Subject Property.

10.0 CONCLUSIONS

JEM has performed a Phase I ESA in conformance with the scope and limitations of ASTM Practice E1527-21 of 603 Queensbury Avenue, Queensbury, New York (the "Subject Property"). Any exceptions to, or deletions from, this practice are described in Section 1.3 of this report.

This assessment concludes that RECs, HRECs, CRECs and/or significant data gaps were not identified in connection with the Subject Property.

11.0 QUALIFICATIONS OF ENVIRONMENTAL PROFESSIONAL

James F. Blasting, P.G.

Mr. Blasting, Senior Consultant at James Environmental Management, is a NYS Licensed Professional Geologist and NYSDEC and USEPA qualified Environmental Professional with more than 25 years of professional experience in site investigation and remediation. His expertise ranges from site identification and end use evaluation to coordinating the planning, environmental, ecological, and engineering aspects of site development. He has supported hundreds of successful site development projects worldwide, from single site due diligence to “turnkey” Brownfield site characterization, restoration and redevelopment. Mr. Blasting’s experience and insight has been instrumental in steering site restoration projects through the regulatory system and bringing properties and facilities into compliant productive use. Mr. Blasting holds a Bachelor’s degree in Geology from the State University of New York Buffalo and a Master’s degree in Earth Science from the State University of New York Albany.

Alexis Martin

Alexis Martin is an environmental scientist with varied professional experience including conducting environmental site assessments and completing environmental plans. She has completed Phase I and Phase II site investigations, conducted remedial investigations, has developed and implemented Federal and State regulatory compliance programs pertaining to air, water, hazardous waste, municipal waste, bulk storage and spill prevention. Ms. Martin holds a Bachelor’s degree in Environmental Science from the State University of New York at Albany.

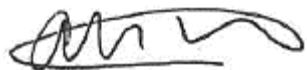
Jacob Guy

Jacob Guy is a geologist with over five years of experience in site investigation and remediation. Jacob has experience managing field efforts for remedial investigations, performing tasks associated with soil vapor extraction and air sparge systems, implementing groundwater and landfill treatment and remediation projects, installing groundwater monitoring wells and collecting data associated with various environmental systems. He has supported many successful site development projects including conducting all aspects of due diligence and Phase I ESA reporting. Mr. Guy holds a Bachelor’s degree in Geology from the State University at Cortland.

The Environmental Professionals presented above declare that, to the best of our professional knowledge and belief, we meet the definition of Environmental Professional as defined in §312.10 of 40 CFR § 312 and have the specific qualifications based on education, training, and experience to assess a property of the nature, history, and setting of the subject property. We have developed and performed the appropriate inquiries in conformance with the standards and practices set forth in 40 CFR Part 312.



James F. Blasting, P. G.



Alexis Martin



Jacob Guy

12.0 REFERENCES

Internet Sources

- Google Earth – www.google.com/earth
- United States Department of Agriculture – Web Soil Survey.
- United States EPA - Enforcement and Compliance History Online.
<https://echo.epa.gov/>.
- U.S. Fish & Wildlife Service – National Wetlands Inventory Maps
<https://www.fws.gov/program/national-wetlands-inventory/wetlands-mapper>
- FEMA Flood Map Service Center
<https://msc.fema.gov/portal/home>
- New York State Museum, Geologic Map of New York
https://www.nysm.nysed.gov/sites/default/files/mc5_geologicmapofnewyork.pdf
- New York State Department of Environmental Conservation DECinfo Locator
<https://gisservices.dec.ny.gov/gis/dil/>
- New York State Department of Environmental Conservation Bulk Storage Database
<https://extapps.dec.ny.gov/cfm/extapps/derexternal/index.cfm?pageid=4>
- New York State Department of Environmental Conservation Spill Incidents Database Search
<https://extapps.dec.ny.gov/cfm/extapps/derexternal/index.cfm?pageid=2>
- New York State Department of Environmental Conservation Environmental Site Remediation Database Search
<https://extapps.dec.ny.gov/cfm/extapps/derexternal/index.cfm?pageid=3>

Database Listings – Envirosearch Corp., Conklin, NY.

- Aerial Photographs. Inquiry #102421; 10/19/24.
- Historic Fire Insurance Map Report. #102421 10/16/24; date.
- City Directory Image Report. Inquiry #102421; 10/16/24.
- Historic Topographic Map Report. Inquiry #10/16/24; date.
- Government Records Report. Inquiry #102421; 10/16/24.

User Provided Sources

- User Questionnaire; completed by Josh Williams on October 16, 2024.

APPENDIX A

ASTM Standard E1527-21 Definitions

APPENDIX A: DEFINITIONS

1. **Environmental Site Assessment (ESA):** The process by which a person or entity seeks to determine if a particular parcel of real property (including improvements) is subject to *recognized environmental conditions*.
2. **Phase I Environmental Site Assessment Objectives:** The purpose of this Phase I Environmental Site Assessment is to identify, to the extent feasible pursuant to the processes prescribed in ASTM E1527-21, recognized environmental conditions in connection with the Subject Property. A Phase I Environmental Site Assessment shall have the following components: User Responsibilities, Physical Setting Sources, Government Records, Site Reconnaissance, Owner/Operator/Occupant Interviews, Local Government Officials Interviews, and Evaluation/Report.
3. **Recognized Environmental Condition:** (1) the presence of hazardous substances or petroleum products in, on, or at the subject property due to a release to the environment; (2) the likely presence of hazardous substances or petroleum products in, on, or at the subject property due to a release or likely release to the environment; or (3) the presence of hazardous substances or petroleum products in, on, or at the Subject Property under conditions that pose a material threat of a future release to the environment.
4. **Historical Recognized Environmental Condition:** A previous release of hazardous substances or petroleum products affecting the subject property that has been addressed to the satisfaction of the applicable regulatory authority or authorities and meeting unrestricted use criteria established by the applicable regulatory authority or authorities, without subjecting the Subject Property to any controls (for example, activity and use limitations or other property use limitations)."
5. **Controlled Recognized Environmental Condition:** A recognized environmental condition affecting the Subject Property that has been addressed to the satisfaction of the applicable regulatory authority or authorities with hazardous substances or petroleum products allowed to remain place subject to the implementation of required controls (for example, activity and use limitations or other property use limitations).
6. **Business Environmental Risk:** A risk which can have a material environmental or environmentally-driven impact on the business associated with the current or planned use of commercial real estate, not necessarily related to those related environmental issues required to be investigated in this practice.
7. **De Minimis Condition:** A condition related to a release that generally does not present a threat to human health or the environment and that generally would not be the subject of an enforcement action if brought to the attention of appropriate governmental agencies.
8. **Significant Data Gap:** A data gap that affects the ability of the environmental professional to identify a recognized environmental condition.

APPENDIX B

Terms and Conditions, Limitations

TERMS AND CONDITIONS, LIMITATIONS

SPECIAL TERMS AND CONDITIONS

The Phase I ESA was conducted in accordance with the Scope of Work established by James Environmental Management (JEM). Any exceptions or deletions from these guidance documents are described in this document and/or the aforementioned proposal. This Phase I ESA did not evaluate any issues related to asbestos or potential asbestos-containing materials.

The performance of services by JEM was governed by the General Terms and Conditions with Client and the limitations as set forth in the original proposal.

LIMITATIONS AND EXCEPTIONS

Scope of Activity

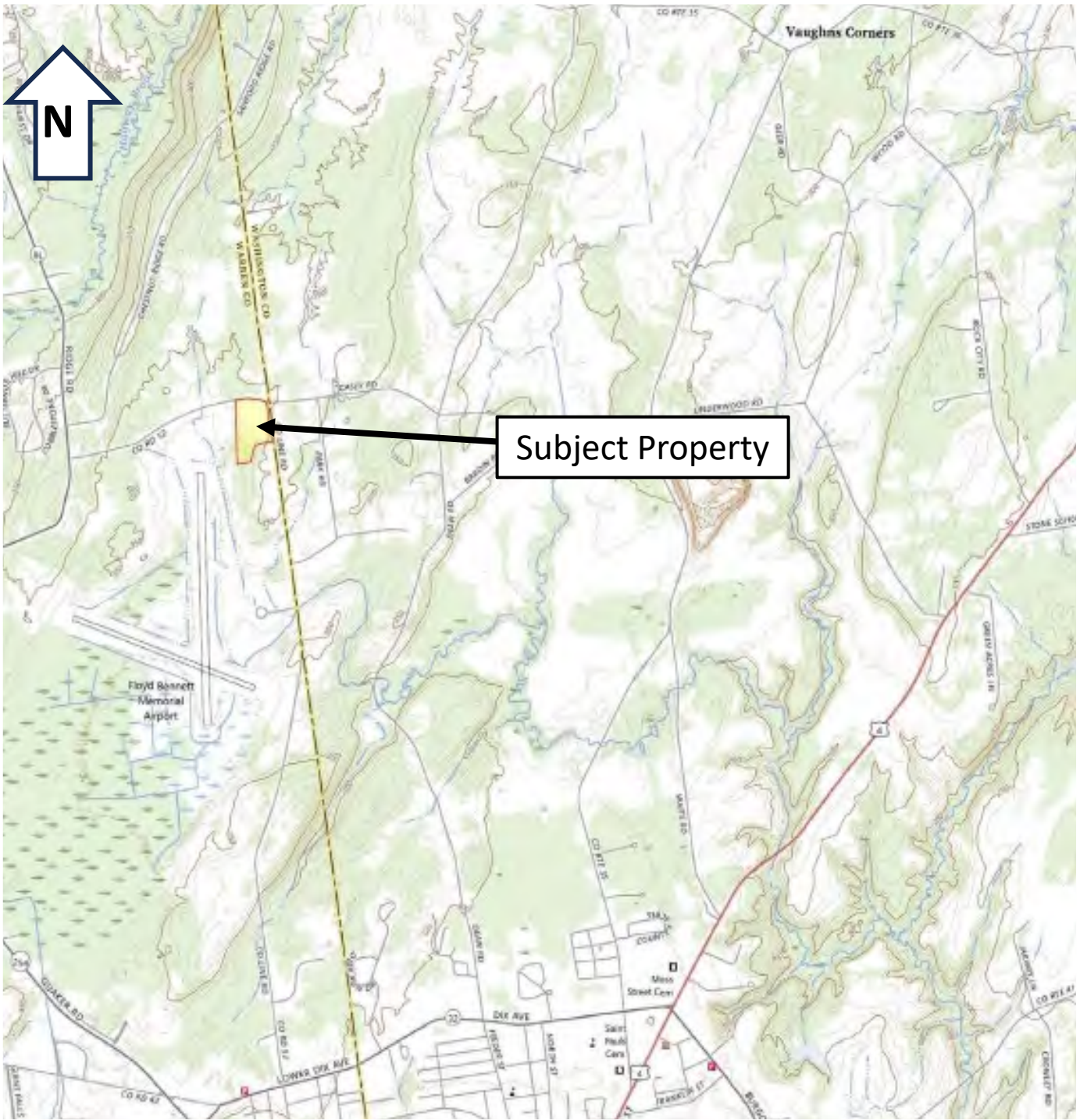
This report is based upon the application of scientific principles and professional judgment to certain facts with resultant subjective interpretations. Professional judgments expressed herein are based on the facts currently available within the limits of the existing data, scope of work, budget and schedule. To the extent that more definitive conclusions are desired by the client than are warranted by the currently available facts, it is specifically intended that the conclusions and recommendations stated herein will be intended as guidance and not necessarily a firm course of action except where explicitly stated as such. We make no warranties, expressed or implied, including, without limitation warranties as to merchantability or fitness of the property for a particular purpose. In addition, the information provided to you in this report is not to be construed as legal advice.

Limitations of Use of This Report

The environmental assessment was performed for the Client in accordance with the proposal accepted by the Client. Client acknowledges that this report has been prepared for use by the Client and agrees that JEM's reports and/or correspondences will not be used or relied upon in any prospectus or offering circular related to any initial public offering.

APPENDIX C

Subject Property Figures



 james environmental management	603 Queensbury Ave Queensbury, NY 12804	
Date: 11/15/2024	Client: One Remington, LLC	Figure 1 Site Location



**603 Queensbury Ave
Queensbury, NY 12804**

Date:
11/15/2024

Client:
One Remington, LLC

Figure 2
Site Features